

ARCHIVED CONTENT

Information released online from January 20, 2009 to January 20, 2017.

NOTE: Content in this archive site is **NOT UPDATED**, and links may not function. External links to other Internet sites should not be construed as an endorsement of the views contained therein.

[Go to the current State.gov website for up-to-date information. \(http://www.state.gov/\)](http://www.state.gov/)

U.S. Department of State Diplomacy in Action

Moldova

Bureau of Democracy, Human Rights, and Labor

2005

March 8, 2006

Moldova is a parliamentary republic, with a population of approximately 4 million, of whom an estimated 580 thousand live in the secessionist-controlled region of Transnistria. The constitution provides for a multiparty representative government with power divided among a president, cabinet, parliament, and judiciary. Separatist elements, supported by Russian military forces in the area, declared a "Transdnister Moldovan Republic" in Transnistria between the Dniester River and Ukraine. The government does not control this region. Unless otherwise stated, all references herein are to the rest of the country. Parliamentary elections on March 6 were generally free and fair; however, authorities in the Transnistria region interfered with the ability of residents there to vote. On April 4, the parliament reelected Communist Party leader Vladimir Voronin as president. Civilian authorities generally maintained effective control of the security forces.

The government generally respected the human rights of its citizens; however, there were problems in some areas, and the human rights record of the Transnistrian authorities remained poor. There were reports of the following human rights problems:

- selective official harassment and intimidation of the political opposition
- security force beatings, particularly of persons in police custody and Roma
- incommunicado detention for extended periods
- harsh prison conditions
- arbitrary arrest and detention of Roma
- judicial and police corruption
- monitoring by security forces of political figures through unauthorized wiretaps and, at times, illegal searches
- intimidation of journalists into practicing self-censorship
- restrictions on freedom of assembly
- obstacles to official registration by a few religious groups
- persistent societal violence and discrimination against women and children
- trafficking in women and girls
- discrimination against Roma
- some limits on workers' rights
- child labor

In Transnistria: the right of citizens to change their government was severely restricted; authorities reportedly continued to use torture and arbitrary arrest and detention; prison conditions remained harsh, and two members of the so-called Ilascu Group remained in prison despite a July 2004 ruling in their favor by the European Court for Human Rights. Transnistrian authorities harassed independent media and opposition lawmakers, restricted freedom of association and of religion, and discriminated against Romanian-speakers.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no reports that the government or its agents committed arbitrary or unlawful killings in the country or its separatist region.

b. Disappearance

There were no reports of politically motivated disappearances during the year. The police investigation into the July 2004 disappearance of Sergei Gavrilov, who was imprisoned in Transnistria during the early 1990s and allegedly witnessed the mistreatment of members of the "Ilascu Group," continued at year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were reports that police employed cruel and degrading arrest and interrogation methods and that guards beat prison inmates. On June 30, parliament approved a law criminalizing torture.

Nongovernmental organizations (NGOs) reported several cases of cruel, inhuman, or degrading treatment of prisoners and detainees. For example, the local Amnesty International (AI) office reported that armed police beat several Roma in a mid-July raid on a Romani community in Edineti in connection with a murder investigation. Police in Chisinau detained three persons incommunicado for several weeks (see section 1.d.).

According to the Helsinki Committee, the Ministry of Internal Affairs took administrative action against the officers involved in the September 2004 beating and interrogation of Petru Calamanov.

Prison and Detention Center Conditions

Conditions in most prisons in the country (including Transnistria) remained harsh, and in some instances were life-threatening, with serious overcrowding. Cell sizes did not meet local legal requirements or international standards. The incidence of malnutrition and disease, particularly tuberculosis, was high in all prisons. Conditions were particularly harsh in facilities for persons awaiting trial or sentencing. AI reported that one detainee, Oleg Talmazan, suffered a heart attack in March 2004 but was not hospitalized for almost two weeks even though emergency ambulance personnel recommended immediate hospitalization. Other detainees reported being denied food and water and being held in underground facilities without medical care, fresh air or ventilation, or appropriate sanitation.

On June 27, several hundred inmates protested their detention conditions and treatment at a prison in Tiraspol (in Transnistria). The prisoners went on hunger strike and inflicted cuts and other injuries on themselves. The protests ended after several days, and a representative of the Organization for Security and Cooperation in Europe (OSCE) was allowed to visit the prison.

In August 2004 the Supreme Court of Justice ordered the Bender prosecutor's office to take action to resolve the situation of 250 prisoners with tuberculosis who were held at Bender prison under inadequate conditions, but the prosecutor's office had taken no action by year's end.

Pretrial detainees generally were held separately from convicted prisoners, although there were reports of convicted prisoners remaining in detention facilities due to prison overcrowding. Children convicted of crimes were sent to adult prisons, where they were held in separate cells. A survey by the NGO Institute for Penal Reform (IPR) revealed cases of minors detained for the first time in pretrial detention together with minors who had a past history of detention and were suspected of grave offenses. IPR reported a case of a female minor being detained together with adults.

Government and independent human rights observers were generally permitted to visit prisons. The Moldovan Center for Human Rights regularly made prison visits during the year. The government cooperated with the International Committee of the Red Cross (ICRC) and permitted visits to prisoners. Transnistrian authorities allow the ICRC to visit the Ilascu Group prisoners once a year.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention; however, at times, police arbitrarily arrested and detained Roma (see section 5).

Role of the Police and Security Apparatus

The national police force is the country's primary law enforcement body. The police force is subdivided into regional and city police commissariats, which are subordinated to the Ministry of Internal Affairs. Police corruption remained a problem. During the year, authorities brought 190 criminal cases against employees of the Ministry of Internal Affairs for bribery, robbery, and abuse of office, compared with 199 such cases in 2004. The Prosecutor General's Office is responsible for investigating the activities of the police. An internal affairs unit, reporting to the Ministry of Internal Affairs, investigated minor incidents of corruption.

Arrest and Detention

Judges issue arrest warrants based on cases presented by prosecutors. Under the law, authorities must promptly inform detainees of the reason for their arrest and the charges against them. Suspects may be detained without charge for 72 hours. The law provides accused persons the right to a court hearing on the legality of their arrest. These rights were not always respected in practice.

Once charged, a detainee may be released on personal recognizance pending trial; in some cases, to arrange release, friends or relatives were allowed to give a written pledge that the accused would appear for trial. The law provides for a system of bail, but it was rarely used. Authorities generally did not release before trial detainees accused of violent or serious crimes.

Detainees had the right to a defense attorney; however, at times this right was restricted. Authorities generally did not grant detainees access to a lawyer until 24 hours after detention. Police often told persons that they were considered witnesses in a case and questioned them without a lawyer present, then changed their status to that of suspect. Detainees were often presented with the charges against them without a lawyer present. The government requires the local bar association to provide an attorney to defendants who are unable to afford one, but the government did not pay legal fees, and defendants often did not have adequate counsel. Detainees were generally allowed access to family members.

Local and international NGOs reported arbitrary detention and arrests of Roma without cause or warrants, often without granting them access to a lawyer (see section 5). According to AI, on July 18, the police detained more than 30 Romani men and boys, some as young as age 12, during a raid in the town of Edineti. Most were held for two days before a local court ordered their release; most were released without charge. Mikhail Kaldarar, who was detained on July 18, was subsequently

transferred to a holding facility in Chisinau. Although the court ordered his release on July 25, authorities held Kaldarar until September 8, without allowing him access to his family or lawyer. In connection with the same investigation, Vasiliu and Ana Kodrian were taken into custody on August 18 on the grounds that their son, who was not apprehended, was a suspect in a murder investigation. They were held incommunicado for several weeks until their releases on September 12 and 7, respectively.

There were occasional detentions that some observers regarded as politically motivated. On October 19, local authorities briefly detained Mikhail Formuzal, mayor of Ciadir-Lunga in the Gagauz autonomous region and a leading opposition figure in Gagauzia on charges of abuse of office and misuse of funds. Formuzal was forbidden to leave the city while the investigation continued.

In March police arrested former defense minister Valeriu Pasat on accusations of defrauding the government of several million dollars. Many observers considered his arrest and detention politically motivated. A trial was completed in December, and Pasat remained in custody while a verdict was pending at year's end.

The trial of Chisinau water utility head Constantin Becciev, which began in 2003, remained pending at year's end. Becciev, who was held in preventive detention for six months in 2003, continued to run the utility after his release. On October 4, in a separate case lodged by Becciev, the European Court for Human Rights (ECHR) concluded that the country had held Becciev in inhuman and degrading conditions and had not provided a fair trial; the court obliged the country to pay Becciev for moral damages and lawsuit-related expenses.

The laws permit pretrial detention for an initial period of 30 days. The courts may extend pretrial detention to 12 months on an individual basis, based on the severity of the alleged crime. Detentions of several months were fairly frequent; in rare instances, pretrial detention was extended for several years. At year's end there were 8,876 persons in prison: 259 were minors, 417 were women, and 2,472 were pretrial detainees.

In May Gagauz authorities granted amnesty to Ivan Burgudji, an official of the Gagauz autonomous region and well-known Gagauz nationalist. In 2003 the Chisinau tribunal court sentenced Burgudji to five years in prison for abuse of power and malicious hooliganism in connection with his opposition political activities.

Transnistrian authorities regularly harassed and often detained persons suspected of being critical of the regime for periods of up to several months.

On November 22, Transnistrian authorities detained for several hours and reportedly abused two brothers, aged 12 and 15, who were the sons of a teacher at one of the Latin script schools in Transnistria. The Transnistria militia reportedly explained they had detained the boys to clean the city of homeless people before the December legislative elections.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, but official pressure and corruption of judges remained a problem. There continued to be credible reports that local prosecutors and judges extorted bribes in return for reducing charges or sentences, and observers charged that courts were sometimes politically influenced. Political factors played a large role in the reappointment of judges.

The judiciary consists of lower courts, courts of appeal, and the Supreme Court of Justice. A separate Constitutional Court has exclusive authority in cases regarding the constitutionality of draft and final legislation, decrees, and other government acts. The Constitutional Court was the only court generally regarded as fair and objective.

The prosecutor general's office is autonomous and answers to parliament. It is responsible for overseeing criminal investigations, presenting charges before a court, and protecting the rule of law and civil freedoms. Prosecutors may open and close investigations without bringing the matter before a court, giving them considerable influence over the judicial

process.

Trial Procedures

While defendants in criminal cases are presumed innocent, in practice a prosecutor's recommendation carried considerable weight and limited a defendant's actual presumption of innocence. Trials were generally open to the public; however, due to a shortage of courtrooms many cases were heard in judges' offices. Court session information, such as trial times, locations and verdicts, was rarely posted publicly as required by law, which limited public access to court proceedings. Cases were presented to a judge or panel of judges depending on the complexity of the case. Defendants have the right to a lawyer, to attend proceedings, to confront witnesses, and to present evidence. The law requires the local bar association to provide an attorney to defendants who are unable to afford one; however, since the government did not pay ongoing legal fees, defendants often did not have adequate counsel. Prosecutors occasionally used bureaucratic maneuvers to restrict lawyers' access to clients. Defense attorneys were able to review evidence against their clients when preparing cases. Convicted persons have the right to appeal to a higher court.

The law provides for the accused to have an interpreter if needed, both at the trial and when reviewing documents of the case; however, due to a lack of resources, persons requiring an interpreter often had their hearings repeatedly postponed. If the majority of participants agree, trials may be conducted in Russian or another language instead of Romanian.

There is no juvenile justice system, and children accused of crimes usually were tried by the criminal courts. There were judges in each region and in Chisinau specializing in cases involving minors.

The country has a military justice system, whose courts have generally the same reputation as civilian courts. Its jurisdiction extends to crimes committed by active duty military personnel and crimes committed by reserve or retired military personnel while they were on active duty. The military courts can also try civilians for crimes committed against military personnel if the plaintiff presses charges through the military prosecutor's office.

Political Prisoners

Transnistrian authorities continued to refuse compliance with a July 2004 ECHR ruling to release two members of the Ilascu Group convicted in 1993 of killing two Transnistrian officials; their sentence has two years remaining. There were no other reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions; however, the government did not respect these prohibitions in practice.

It was widely believed that the security agencies conducted illegal searches, including wiretaps. Only a judge can legally authorize wiretaps and may do so only if a criminal investigation is underway; in practice, the judiciary lacked the ability to control security organizations and police or to prevent them from using wiretaps illegally. Courts did not exclude evidence obtained illegally. It was widely believed that security agencies electronically monitored residences and telephones. During the February parliamentary election campaign, police searched a Chisinau office of the opposition Social Democratic Party, confiscating a list of party supporters and files of several party members. Police searched the Cahul offices of the opposition Christian Democratic People's Party and the Democratic Moldova Bloc; authorities asked both parties to present data on sources of financing for their election campaigns.

During the year, police reportedly informed persons of Middle Eastern origin that they were being carefully monitored. Several opposition politicians alleged that government authorities were illegally monitoring them.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press; however, the government sometimes restricted these rights; however, the government on occasion intimidated journalists into practicing self-censorship.

The print media expressed a wide variety of political views and commentary. The government owned a news agency; national and city governments subsidized a number of newspapers. Political parties and professional organizations also published newspapers, most of which had a circulation of less than 15 thousand. The government did not restrict foreign publications, but most were not widely circulated due to high costs. Russian newspapers were available; some of them published special Moldovan weekly supplements.

Most radio stations rebroadcast programs from Romania and Russia, offering only a limited amount of locally produced programming. The government controlled a radio station and a television station (Teleradio Moldova - TRM) that covered most of the country. Some local governments, including in Chisinau and Gagauzia, operated television and radio stations as well as newspapers. The country received television and radio broadcasts from Romania, Ukraine, and Russia. A number of cable subscribers received a variety of foreign television programs, including news programs.

The number of media outlets not owned and operated by the government or a political party increased, but many of these independent media remained in the service of, and secured large subsidies from, the government and political movements.

In June authorities sold the two government-owned newspapers, *Moldova Suverana* and *Nezavisimaya Moldova*. The sale fulfilled one of the conditions put forward by the parliamentary opposition in return for supporting President Voronin's re-election in April. The two newspapers continued as independent publications but retained their pro-government stance.

The restrictive regulatory framework for media coverage of the March 6 parliamentary election campaign made it difficult for citizens to get information about the candidates. On February 23, responding to international and domestic concerns, the Central Election Commission (CEC) revised the regulations, dramatically increased the airtime for debates on public stations, and allowed news programs to cover the campaign. The CEC decision came less than two weeks before the election, which lessened its efficacy.

Authorities released for lack of evidence a suspect in the June 2004 beating and robbery of investigative journalist Alina Anghel of the independent newspaper *Timpul*, and the investigation remained ongoing at year's end.

There were no developments in the case of Nicolae Roibu, another *Timpul* journalist, whom unknown persons attacked and robbed of his dictaphone and tape recordings in 2003.

The law prohibits foreign governments from funding or supporting domestic publications. In practice, Romanian government-supported publications complied with the law by receiving funds from "foundations" created for this purpose. The government did not prosecute publications receiving funds from other states.

On October 18, the Audiovisual Coordinating Council suspended the license of Analytic Media Group to rebroadcast the Russian news channel, Channel One, on one of the three nationwide television networks. Foreign observers expressed concern over the lack of transparency of the decision-making process and the independence of the Audiovisual Coordinating Council.

Despite the transformation of Teleradio Moldova into a public company in August 2004, controversy continued over alleged government control of the company. Teleradio Moldova employees charged that selection of employees for the new company was biased against journalists who were critical of the government. Several journalists who had been dismissed sued Teleradio Moldova's administration. In one such case, a court upheld the legality and competency of Teleradio Moldova's hiring committee. Other lawsuits remained pending at year's end.

Several international organizations sponsored a monitoring project, which showed that Teleradio Moldova continued to limit coverage of the opposition while giving extensive positive coverage to the activities of the government.

Journalists and media outlets continued to face libel suits under the civil code, but there were no reported cases of such suits during the year. The weekly newspaper *Timpul* lost a 2004 lawsuit in which the Daac-Hermes Company alleged \$2 million (24.8 million lei) damages from the publishing of "calumnious" information. Also in 2004 the head of the government-owned Moldovan Railroad filed a civil suit against the independent Russian-language newspaper *Moldavskie Vedomosti*, asking for \$50 thousand (620 thousand lei) for "moral damages." On July 12, the court ordered *Moldavskie Vedomosti* to pay a penalty of \$2 thousand (25 thousand lei). *Moldavskie Vedomosti* filed an appeal with the ECHR, which was pending at year's end.

Both print and broadcast journalists reportedly practiced self-censorship due to government and public figures' use of civil defamation and calumny laws and to complaints from authorities about news coverage.

There were no government restrictions on the Internet or academic freedom.

One of the two major newspapers in Transnistria was controlled by the separatist authorities and the other by the Tiraspol city government. There was one independent weekly newspaper in Bender and another in the northern Transnistrian city of Ribnitsa. Separatist authorities harassed the independent newspapers when they criticized the Transnistrian regime. Other print media in Transnistria did not have a large circulation and appeared only on a weekly or monthly basis; some of them also criticized local authorities. Most Moldovan newspapers did not circulate widely in Transnistria, although they were available in Tiraspol.

In July the Transnistrian Supreme Soviet amended the election code to prohibit media controlled by the Transnistrian authorities from publishing results of polls and forecasts related to elections.

In August, under an OSCE-negotiated formula, the Transnistrian authorities registered all Latin-script schools in the region, allowing them to start a new school year. In previous years Transnistrian authorities used threats of violence to force schools (which teach in the Romanian language) to use Cyrillic rather than Latin script (see section 5).

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly; however, at times the government limited this right in practice. In several instances, citizens were arrested during peaceful protests, detained for several hours, and then released without charge. On May 16, Chisinau authorities refused to issue a permit to the NGO Gender DocM for a peaceful demonstration in conjunction with the country's fourth annual gay pride events (see section 5).

The OSCE Office for Democratic Institutions and Human Rights' (ODIHR) final report on the March 6 parliamentary elections noted several cases where local administrations either did not authorize campaign meetings or obstructed access to them.

The Transnistrian authorities usually did not permit free assembly; on those occasions when they did issue permits for demonstrations, they often harassed organizers and participants, although there were no such incidents reported during the year.

Freedom of Association

The constitution provides for freedom of association and states that citizens are free to form parties and other social and political organizations; however, the constitution also prohibits organizations that are "engaged in fighting against political pluralism," the "principles of the rule of law," or "the sovereignty and independence or territorial integrity" of the country. Small parties favoring unification with Romania charged that this provision was intended to impede their political activities, but no group has been prevented from forming as a result of this provision. While private organizations, including political parties, were required to register, applications were approved routinely.

Transnistrian authorities restricted freedom of association by intimidation and prosecution for alleged offenses or on invented charges.

c. Freedom of Religion

The constitution provides for freedom of religion, and the government generally respected this right in practice; however, the law includes restrictions that inhibit the activities of some religious groups. Although there is no state religion, the Moldovan Orthodox Church received special treatment from the government. For example, the Metropolitan of Chisinau and All Moldova and other high-ranking Orthodox Church officials received diplomatic passports.

The law requires religious groups to register with the State Service for Religions (SSR). Unregistered religious groups may not buy land or obtain construction permits for churches or seminaries.

At year's end the SSR had not registered the True Orthodox Church of Moldova, despite a 2002 Supreme Court ruling in the church's favor. The SSR and the government attempted a variety of appeals but still were ordered to register the church. According to the SSR, the wording of the court decision, which obliges the government rather than the SSR to register the church, has prevented the church's registration. The Church of Jesus Christ of Latter-day Saints, the Central Muslim Spiritual Board of Moldova, and the Spiritual Organization of Muslims in Moldova also continued to encounter bureaucratic obstacles to registration. The SSR stated that the application of the Mormons was pending, while the SSR monitored the activities of the church. In the case of the Muslim organizations, the SSR stated that they failed to present the necessary documents for registration.

The Spiritual Organization of Muslims reported fewer problems with the police, who in the past frequently appeared at their local office during Friday prayers, checked participants' documents, and took pictures. In March the organization received a letter from the Ministry of Justice, demanding that it stop the propagation of an unregistered cult. In March 2004 the police raided the organization's meeting place after Friday prayers, detained several members, and subsequently deported three Syrian citizens for not having proof of legal residence. The authorities claimed the services were illegal because the organization was not registered and because the meeting place was not being used in accordance with the organization's status as a charity.

Baptists reported interference from government authorities in constructing places of worship. Authorities continued to ban work on constructing a Baptist church in the village of Capriana, which they had stopped in May 2004.

A July 2004 Transnistrian supreme court ruling limited the activities of the Jehovah's Witnesses to the city of Tiraspol, but the court rejected the Tiraspol public prosecutor's 2002 request to annul the group's registration and prohibit its activities altogether. In December 2004 the Tiraspol city prosecutor notified the Jehovah's Witnesses that the church would need to reregister, but the Jehovah's Witnesses were unable to obtain from the Transnistrian authorities the required documents. The Transnistrian supreme court refused to hear an appeal filed by the Jehovah's Witnesses early in the year. Transnistrian authorities reportedly accused Jehovah's Witnesses of lacking patriotism and spreading Western influence and developed school teaching aids that contained negative and defamatory information regarding the Jehovah's Witnesses.

Although the law prohibits "abusive proselytizing"--defined as "an attempt to influence someone's religious faith through violence or abuse of authority"--the government has not taken legal action against individuals or organizations for proselytizing. Foreign missionaries may enter the country for 90 days on a tourist visa.

Nondenominational "moral and spiritual" instruction is mandatory for primary school students and optional for secondary and university students. Some schools have a specific class on religion; student participation requires parental consent.

The law that provides for restitution of property confiscated during the Nazi and Soviet regimes to politically repressed or exiled persons has been extended to religious communities; claims of the Moldovan Orthodox Church have been favored over those of other religious groups, and the church has recovered nearly all of its property. In cases where property was destroyed, the government offered alternative compensation. Property disputes between the Moldovan and Bessarabian branches of the Orthodox Church have not been resolved; representatives of the Bessarabian Orthodox Church claimed that their property rights were still being violated and a case they filed with the ECHR against the country was pending at year's end. The Jewish community, which experienced mixed results in recovering its property, had no pending claims.

Societal Abuses and Discrimination

Members of Jehovah's Witnesses complained that various local town councils and Orthodox priests and their adherents had impeded their ability to practice their religion freely. On April 28 several residents of Comrat led by a city councilman entered a construction site, where Jehovah's Witnesses were building a house of worship; the group threatened and insulted workers and demanded they stop work. A week later Comrat Mayor Nikolai Dudoglo temporarily suspended construction and referred the matter to the city council, which, on May 20, decided to suspend indefinitely the previously issued construction permit. The Jehovah's Witnesses reported similar problems in obtaining and maintaining construction permits to build houses of worship in villages throughout the country. Baptists also reported that townspeople in several localities physically or verbally abused them at the instigation of local Orthodox priests.

There were a few reports of negative press articles about non-Orthodox religions. Articles targeted members of Jehovah's Witnesses, criticizing their beliefs and legitimacy; Baptists in Transnistria also complained of negative press reports about their religion.

Non-Orthodox groups in Transnistria complained that they were generally not allowed to rent property and were often harassed during religious services.

The Jewish community numbered approximately 25 thousand. On May 3, six tombstones were destroyed in the Jewish cemetery in Chisinau. Three young men, two from Chisinau and one from Tiraspol, were arrested in connection with the vandalism; their motives were not clear, but Jewish community leaders stated that they did not consider the vandalism an act of anti-Semitism.

There has been no progress in the investigation into several anti-Semitic acts, which took place in Tiraspol (Transnistria) in March and May of 2004 when unknown persons desecrated more than 70 tombstones in the Jewish cemetery and later unsuccessfully attempted to set the Tiraspol synagogue on fire. Transnistrian authorities believed the attacks were perpetrated by the same individuals.

There were no developments in the 2003 destruction by unknown persons of eight tombstones in a Jewish cemetery in Balti.

For a more detailed discussion, see the [2005 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2005/\)](https://www.state.gov/j/drl/rls/irf/2005/).

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights, and the government generally respected them in practice. Transnistrian authorities sometimes restricted travel to and from the separatist region.

Transnistrian authorities applied a transit fee to Moldovan nationals crossing through Transnistria and often stopped and searched incoming and outgoing vehicles. Transnistrian authorities prevented farmers from government-controlled villages in the Dubassari region of Transnistria from traveling to areas outside Transnistria to sell their produce and, in some cases, blocked farmers' access to their fields.

The law prohibits forced exile, and the government did not employ it.

Citizens generally were able to depart from and return to the country freely; however, there were some restrictions on emigration. Persons wishing to emigrate must meet all outstanding financial obligations to other persons or legal entities before emigrating. Close relatives who are dependent on a potential emigrant for material support must give their concurrence. Although the government may deny permission to emigrate if the applicant had access to state secrets, no such cases have been reported for several years.

Protection of Refugees

The law provides for the granting of asylum or refugee status to persons in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, and the government has established a system for providing protection to refugees. In practice the government provided protection against *refoulement*, the return of persons to a country where they feared persecution. The government granted refugee status and asylum. The Government also provided temporary protection to individuals who may not qualify as refugees under the 1951 convention and its 1967 protocol and provided it to seven persons during the year. Although the government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in assisting refugees and asylum seekers, AI reported that Chechen asylum-seekers experienced delays in having their applications adjudicated, and in some cases no decisions were taken. In October several refugees complained about delays in receiving their legal documents including identification cards and travel permits.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the right to change their government peacefully, and citizens exercised this right in practice in most of the country through periodic, generally free and fair elections held on the basis of universal suffrage, although authorities harassed and intimidated the political opposition. Authorities in Transnistria restricted the right of citizens to change their government.

The constitution provides for a parliamentary form of government. Parliament by a three-fifths vote elects the president, who appoints the prime minister, who in turn names a cabinet. Parliament must approve both the prime minister and the cabinet.

Elections and Political Participation

On March 6, citizens voted in multiparty parliamentary elections. The ODIHR considered the balloting itself to be generally free and fair, but the campaign conditions and media coverage preceding the vote "were not satisfactorily equitable." The ODIHR concluded that the elections generally complied with most OSCE and Council of Europe commitments and other international election standards. Nevertheless, the ODIHR commented, the elections fell short of meeting some standards "central to a genuinely competitive election process. Some restrictive legal provisions and interference by the authorities, in particular at the local level, hampered the campaigns of some contestants, especially those representing the opposition." Restrictive media provisions in the electoral code hindered candidates from presenting themselves to the public. Election observers noted other shortcomings such as inaccurate and incomplete voter lists and group voting on election day. The law requires a minimum of five thousand members for registration of political parties, a threshold which the Council of Europe considered to be "a serious barrier to the maintenance of political parties."

The authorities generally allowed international observers to monitor the elections, registering a record number of international and national observers for the elections. Several persons from Russia and the CIS who claimed to be observers were refused registration and were expelled from the country during the campaign for conducting "illegal activities" in the country. The

authorities accused them of campaigning for and illegally funding one of the candidates.

The government selectively enforced regulations, including inspections and tax auditing, for individuals and businesses that belonged to or supported opposition parties. There were reports of police and officers from the Center for Combating Economic Crime and Corruption visiting printing houses that serviced opposition parties in the election campaign and preventing transport companies from providing buses to political parties to bring individuals to voter assemblies.

Two parties and one bloc won seats in the 101-seat parliament: the Communist Party won 56 seats, the three-party Democratic Moldova Bloc (BMD) gained 34 seats, and the Christian Democratic People's Party won 11 seats. On April 4, the new parliament reelected Communist Party leader Vladimir Voronin president.

There were 21 women in the 101-seat parliament and 2 women in the 19-member cabinet. First Deputy Prime Minister Zinaida Greceanii, Justice Minister Victoria Iftodi, and Deputy Speaker of Parliament Maria Postoico were the highest-ranking female political figures in the country.

There were 26 members of ethnic minorities in the 101-seat parliament and 4 members of a minority in the 19-member cabinet. Russian, Ukrainian, Bulgarian, Azeri, and Gagauz minorities had representation in parliament. Deputies are elected from nationwide party lists rather than local districts.

Early mayoral elections in several towns, including Chisinau in July, were generally free and fair, including more media access and less government interference than in 2003. The elections in Chisinau failed four times because voter turnout did not reach the required one-third of registered voters.

A Christian Turkic minority, the Gagauz, enjoyed local autonomy in Gagauzia in the southern part of the country. Two rounds of voting for the Gagauzia Popular Assembly in November 2003 generally met international standards but were marked by numerous irregularities.

Transnistrian authorities interfered with residents' ability to participate in elections. Internationally recognized election observers were not present during the December 11 elections to the Transnistrian Supreme Soviet, and the elections were not considered free and fair.

The January 9 referendum in Transnistria to recall opposition lawmaker Alexander Radchenko from his position in the Supreme Soviet for allegedly undermining Transnistrian society failed due to low turnout. "Government"-backed NGOs such as Proryv continued to harass Radchenko and fellow opposition lawmaker Nicolai Buchatsky, who were refused access to local media and routinely criticized by the government media. Neither Radchenko nor Buchatsky were reelected to the Supreme Soviet in the December 11 elections.

Government Corruption and Transparency

Corruption was believed to be pervasive throughout the government and society, as reflected in numerous public opinion polls and widely reported by NGOs. The NGO Transparency International reported that corruption remained a "severe problem" in the country. Although the government has acknowledged corruption to be a problem and formed special law enforcement and judicial units to combat it, some critics charged that the government used these units to persecute political opponents. On April 11, the Center for Combating Economic Crime and Corruption arrested Deputy Minister of Labor and Social Protection Valeriu Mostovoi on charges of extorting a bribe. Mostovoi's trial was ongoing at year's end.

In March police arrested former defense minister Valeriu Pasat on accusations of illegally selling fighter jets to a foreign government in 1997. Many observers considered the arrest to be politically motivated, due to Pasat's association with previous administrations and his vocal support of the opposition BMD during the election campaign. At year's end Pasat remained in police custody, pending a verdict in his trial.

The Center for Combating Economic Crime and Corruption continued its year-long investigation into allegations of graft and corruption against opposition BMD leader Serafim Urechean (former mayor of Chisinau) and three other members of parliament (MPs) (two from Urechean's parliamentary group). BMD members accused the authorities of politically motivated harassment. On October 13, at the request of the Prosecutor General's Office, parliament voted to lift the immunity of Urechean and two other MPs from his faction in order to bring charges against them.

In late 2004 the Center for Combating Economic Crime and Corruption and the Prosecutor General's Office opened criminal investigations and arrested several Chisinau city officials. In a televised interview, President Voronin called the Chisinau mayoralty "a mafia nest." The former secretary of the Chisinau City Council, Vladimir Sarban, who had been in detention since his arrest in late 2004, was released October 12, after the ECHR ruled that the government's reasons for prolonging his detention were not relevant or sufficient. At year's end, the investigations of all the officials continued.

The law provides for free access to official information; nonetheless, in several cases authorities denied access to public information. For example, *Ziarul de Garda* newspaper never received a response to its June request to the presidency for a copy of a contract that the presidency signed with a private company. In 2004 the newspaper *Timpul* filed a complaint against parliament for refusing access to transcripts of its sessions. Although the Supreme Court dismissed the suit, parliament subsequently changed its internal regulations to permit publication of its transcripts.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases, except in the Transnistrian region; however, officials were generally not responsive to their views.

The local Helsinki Committee for Human Rights maintained contacts with international human rights organizations; AI maintained a satellite office in Chisinau and was active in the country. Transnistrian authorities impeded the activities of human rights groups in that region.

In anticipation of the March 6 parliamentary elections, more than 200 local NGOs formed the Civic Coalition for Free and Fair Elections "Coalition 2005," to monitor the elections. The coalition issued several reports on its long-term observation findings and was a frequent target of verbal attacks by the ruling Communist Party. On February 9, the Communist Party's executive secretary Victor Stepaniuc published an open letter to the coalition, accusing it of supporting an electoral contestant and threatening to confiscate its funding from international donors. The coalition refuted the accusations, and several diplomatic missions issued a statement in support of the organization.

The government cooperated with the OSCE, which maintained a mission in the country to assist efforts to resolve the Transnistrian conflict. The OSCE participated in the Joint Control Commission that monitors compliance with the cease-fire agreement. Transnistrian authorities occasionally limited OSCE access to the region, including to the security zone dividing Transnistria from the rest of the country.

The law provides for three parliamentary advocates (ombudsmen) and an independent center for human rights, the Moldovan Human Rights Center. Parliament appoints the three advocates, who have equal rights and responsibilities, for five-year terms. Advocates may be removed from office only by a two-thirds vote of parliament. Parliamentary advocates are empowered to examine claims of human rights violations, advise parliament on human rights problems, submit legislation to the constitutional court for review, and oversee the operation of the Moldovan Human Rights Center. In practice the parliamentary advocates dealt mostly with low-level cases. Center personnel provided training for lawyers and journalists, visited jails, made recommendations on legislation, and organized round tables. In July the Moldovan Human Rights Center

presented an annual report to parliament that documented the human rights complaints it received in 2004 and made recommendations for improving legislation in the field of human rights. Several opposition parliamentarians criticized the center for not being active enough in reporting violations and proposing solutions to human rights problems.

Transnistrian authorities reportedly attempted to control NGOs in the region by having security officials "invite" NGO representatives to their offices and by pressuring landlords not to renew selected office leases. The Chisinau-based NGO Promo-Lex reported that unidentified persons in Transnistria had followed their representatives, tapped their telephones, and broken into their offices. In November Ion Iovcev, the principal of a Romanian-language school in Transnistria and active advocate for human rights and critic of the Transnistrian leadership, received many threatening calls that he attributed to his criticism of the regime.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law provides that persons are equal before the law regardless of race, sex, disability, or social origin; however, societal discrimination against women and some ethnic minorities, particularly Roma, persisted.

Women

Domestic violence against women was a widespread problem. The law does not specifically address domestic assault. Women abused by their husbands may file charges under general assault laws, but the government rarely prosecuted domestic assault crimes. During the year the Ministry of Internal Affairs received 3,083 domestic violence complaints, including 39 cases of severe spousal abuse, of which 25 resulted in serious bodily injury and 14 resulted in death. Women's groups asserted credibly that the numbers of rapes and incidents of spousal abuse were underreported.

The government supported educational efforts, usually undertaken with foreign assistance, to increase public awareness of domestic violence and to train public and law enforcement officials to address the problem. The city of Chisinau operated a women's shelter for victims of domestic violence. Private organizations operated services for abused spouses, including a hot line for battered women.

The law criminalizes rape but does not specifically address spousal rape. There were 247 cases of rape reported during the year, but most rapes went unreported. There were no specific government actions to combat rape.

Prostitution is not a crime but is a violation of civil law punishable by a fine or administrative detention of up to 30 days. Prostitution was widespread, and observers noted a growing sex tourism industry, which was particularly prevalent in upscale Chisinau hotels.

Trafficking in women was a serious problem (see section 5, Trafficking).

The law does not prohibit sexual harassment, and it was a common problem.

The law provides that women and men enjoy equal rights, and in practice women, who constituted approximately 50 percent of the workforce, received pay equal to that of men for equal work; however, women did not hold high-paying jobs in the same proportion as men.

Children

There is extensive legislation designed to protect children, and the government provided supplementary payments for families with many children.

The law mandates government-provided free, compulsory, and universal education for at least nine years. Many inadequately funded schools, particularly in rural areas, charged parents for school supplies. While not illegal, such fees contradicted the government's policies and resulted in some parents keeping their children at home. The government and local authorities provided annual assistance to children from vulnerable families to buy school supplies. The UN Children's Fund (UNICEF) reported that net primary school enrollment was 86 percent and secondary school enrollment was approximately 73 percent, with little difference in the rates of boys and girls.

Although the healthcare system devoted a large portion of its limited resources to childcare, childcare professionals considered the amount inadequate. Nonetheless, UNICEF reported that between 96 and 98 percent of children had been fully immunized against tuberculosis, DPT, polio, and measles.

While the law prohibits child neglect and specified forms of abuse, such as begging, child abuse was believed to be widespread. Although no comprehensive statistics on the problem exist, the National Center for Child Abuse Prevention registered 93 cases of abuse in the first seven months of the year. Observers alleged that women begging on the streets of Chisinau often sedated their babies to spend long hours begging.

Trafficking of children for the purpose of sexual exploitation and begging remained a problem (see section 5, Trafficking).

Child labor was a problem (see section 6.d.).

The situation of children in orphanages was generally very poor. Due to lack of funding, children's institutions had major problems, including inadequate food, "warehousing" of children, lack of heat in the winter, and disease. According to the Ministry of Education, there were approximately 11,500 institutionalized children. Not all institutionalized children were orphans; the number of children entrusted to the government by needy parents or by parents leaving the country to look for work reportedly continued to grow. The government estimated that parents of approximately 20 thousand children worked abroad and placed their children in boarding schools or entrusted them to relatives.

Trafficking in Persons

Although prohibited by law, trafficking in persons was a very serious problem. There were reports of involvement by some government officials in trafficking, but authorities opened investigations only against low-level government officials.

The law prohibits trafficking and provides for severe penalties, ranging from seven years to life imprisonment. Sentences for trafficking in children range from 10 years to life imprisonment. The penalty is 15 years to life imprisonment and confiscation of property for repeated or serious offenses, such as trafficking of groups, minors, or pregnant women; through kidnapping, trickery or abuse of power; with violence; or by a criminal organization.

During the year, authorities opened 397 trafficking-related investigations. The Prosecutor General's Office reported that during the year the government had referred 314 trafficking cases to court and had obtained 102 convictions for trafficking-related activities, compared with 95 convictions in 2004; 18 of the 102 convictions resulted in prison sentences.

The Ministry of Internal Affairs antitrafficking unit and the Prosecutor General have principal government responsibilities for combating trafficking. A special law enforcement unit within the Ministry of Internal Affairs continued to operate. The Police Academy curriculum includes an antitrafficking segment developed in conjunction with the international antitrafficking NGO La Strada.

The government improved cooperation with other member countries of the Southeast European Cooperative Initiative during the year, resulting in a number of convictions abroad. The government cooperated with Belarus, Ukraine, and Russia in investigating trafficking cases, as well as with Interpol on cases in Serbia and Montenegro and the United Arab Emirates.

The country was a major country of origin for women and children trafficked abroad for sexual exploitation and men and children who were trafficked to Russia and neighboring countries for forced labor and begging. The country was also a transit point for victims trafficked from Ukraine. Victims were increasingly trafficked to Russia and countries of the Middle East, such as Turkey, Israel, and the United Arab Emirates. The International Organization for Migration (IOM) reported an increase in the number of cases of families trafficked for begging to Poland. The IOM and Save the Children reported that Russia has increasingly become a destination country for trafficking victims, especially minors. During the year IOM assisted 262 returned trafficking victims, the majority of whom had been trafficked to Turkey, Russia, and the United Arab Emirates (149 returned from Turkey, 44 from Russia, and 9 from the United Arab Emirates). The National Committee to Combat Trafficking in Persons reported that new information indicated that men were being trafficked for agricultural and construction work to the Baltic states and to the Commonwealth of Independent States (CIS). There also were reports that women were trafficked to Lebanon, Syria, Israel, Saudi Arabia, the United Arab Emirates, Portugal, France, Thailand, the United Kingdom, Spain, the United States, and Australia.

While many different individuals have become trafficking victims, the primary target group was the female population between the ages of 15 and 30. In 2004 the IOM reported that 12 percent of the victims they assisted were minors at the time of return, and 40 percent were minors at the time of their initial trafficking. Victims often came from rural areas where economic desperation had already driven many residents to look for work abroad. According to the IOM, most victims had already suffered some form of physical or sexual abuse at home and were willing to face significant risk to escape unbearable circumstances in their families. Women and girls typically accepted job offers in other countries, ostensibly as dancers, models, nannies, or housekeepers. In many areas, friends, relatives, or acquaintances approached young women and offered to help them find good jobs abroad.

The IOM reported that former victims frequently acted as trafficking recruiters, sometimes under coercion, and that over the past two years women had recruited most of its caseload victims. Newspaper advertisements promising well-paying jobs abroad also lured many victims. The IOM also noted that traffickers themselves were mainly foreign men, and the International Labor Organization's (ILO) program for the elimination of child labor reported that in many cases traffickers of children have been Roma.

Another trafficking pattern involved orphans who were required to leave orphanages when they graduated from school, usually at the age of 16 or 17, and had no funds for living expenses or continuing education. Some orphanage directors reportedly sold information on when orphan girls were to be turned out of their institutions to traffickers, who approached the girls as they left.

According to the Center for Prevention of Trafficking in Women, parents or husbands pressured some young women to work abroad. Traffickers commonly recruited women from rural villages, transported them to larger cities, and then trafficked them abroad.

Victims were transported by car, van, train, and on foot across borders. Sometimes false documents were used, but increasingly victims traveled by plane with genuine documents.

Widespread corruption and lack of resources prevented adequate border control and monitoring of traffickers, particularly in Transnistria. Border guard and migration officials' salaries were low and frequently not paid regularly, making them vulnerable to bribery.

Observers alleged that corrupt low- and high-level government officials were involved in, or routinely turned a blind eye to, trafficking crimes. No high-level officials were prosecuted during the year, and no government officials were convicted of trafficking. A former policeman was investigated for trafficking women to the United Arab Emirates and deported back to the country in November 2004; at year's end he was free on bail pending trial. In another case, following an investigation in 2004, several officials of the Department of Youth and Sports were fined for issuing false documents used to obtain Western visas, with the intent of either trafficking or smuggling individuals. During the year the Ministry of Internal Affairs withdrew the licenses of several tourism and employment agencies for their suspected role in trafficking.

The Law on Preventing and Combating Trafficking in Persons enacted on October 20 provides for free social services for victims of trafficking, including a modest package of medical and psychiatric services, issuance of identity documents and residence permits, consular services, legal counseling and employment services such as vocational training and professional counseling. The law does not, however, clarify how its implementation will be funded.

The government had no programs to assist victims. Several NGOs offered repatriation assistance, temporary housing, and medical care for victims, and job training. The NGO Save the Children worked with trafficking victims, particularly repatriated girls. The NGO La Strada Moldova provided informational and educational services and a national toll-free hotline.

The government took some steps to prevent the trafficking of persons and assist victims through its national antitrafficking committee. Local committees in each region of the country, and officials of various ministries and local governments were required to present reports on their antitrafficking efforts to the committee. On August 25, the government approved a new National Action Plan for Combating Trafficking in Persons, which was developed in conjunction with international organizations.

Local NGOs operated public school programs to educate young women about the dangers of prostitution. During the year, the IOM continued its information program aimed at providing information to help citizens who have decided to go abroad avoid exploitation.

Persons with Disabilities

Although the law prohibits discrimination against persons with physical and mental disabilities, there were reports of such discrimination. The local NGO Gaudeamus reported widespread discrimination against students with disabilities. There are no laws mandating access to buildings, and there were few government resources devoted to training persons with disabilities. The Social Assistance Division in the Ministry of Health and Social Protection and the National Labor Force Agency are responsible for protecting the rights of persons with disabilities.

National/Racial/Ethnic Minorities

Ukrainians and Russians are the two largest minorities. A Christian Turkic minority, the Gagauz, makes up a small percentage of the population living primarily in the Gagauz Autonomous Region (Gagauz Yeri) in the south of the country. Official statistics put the number of Roma at 11,600, but Romani NGOs estimated the number to be much higher.

Roma suffered violence, harassment, and discrimination. Local and international NGOs reported that Roma were victims of police beatings in custody, arbitrary arrest and detention, harassment by law enforcement officials, and societal violence and harassment (see sections 1.c., 1.d., and 1.e.). The European Roma Rights Center reported that officials discriminated against Roma with regard to housing, education, and access to public services.

The Roma were the poorest of the minority groups and often lived in unsanitary conditions in segregated communities lacking basic infrastructure. These conditions often led to segregated education and schools with even fewer resources than those elsewhere in the country. Many Romani children did not attend school, very few received a secondary or higher education, and there was no Romani-language education.

Minority rights and language were closely related problems. Romanian is the only official language, but Russian served as a language for interethnic communication and is well-established in practice. Russian speakers were not subject to discrimination in education or employment, and a citizen has a legal right to choose either language for interaction with government officials or commercial entities. Officials are required to know both Romanian and Russian "to the degree necessary to fulfill their professional obligations." The law provides parents the right to choose the language of instruction for their children, and the government observed this right in practice.

Authorities in the separatist Transnistrian region continued to discriminate against Romanian speakers, although to a lesser extent than in previous years. They refused to observe the country's language law, which requires the use of Latin script, and the region's schools were required to teach Romanian using the Cyrillic alphabet. Many teachers, parents, and students objected to this requirement, asserting that it disadvantaged persons who wished to pursue higher education opportunities in the rest of the country or in Romania, where the Latin script is used.

In July, under an OSCE-negotiated formula, Transnistrian authorities allowed Latin-script schools located in Transnistria but registered with the Moldovan Ministry of Education to register locally and begin the school year in September. In the summer of 2004, police had closed the Latin-script schools in Ribnita, Tiraspol, Dubasari and Corjova, stating that the institutions violated the Transnistrian legal requirement for the schools to register locally and to use the Cyrillic alphabet for instruction.

Other Societal Abuses and Discrimination

There were reports of governmental and societal discrimination based on sexual orientation.

According to Gender-DocM, lack of community recognition, negative media portrayals, and condemnation by the Orthodox Church often led to public ostracism of gays, lesbians, and their families. On May 16, Chisinau authorities refused to issue a permit for a peaceful demonstration in support of antidiscrimination legislation for sexual minorities during the country's fourth annual gay pride events, reasoning that the country already had a law protecting minorities, and thus there was no reason for the demonstration.

Gender-DocM reported several incidents of gay children being asked to leave home by their parents and of villages shunning a family because of a gay child. The NGO reported that schoolteachers and university professors have been dismissed due to their homosexuality and that police regularly threatened gays and lesbians with public exposure if they did not pay bribes.

In Transnistria, homosexuality was illegal, and gays and lesbians were subject to governmental and societal discrimination.

Several NGOs reported instances of discrimination against persons with HIV/AIDs, particularly in rural villages.

Section 6 Worker Rights

a. The Right of Association

The law provides workers the right to establish or join unions; however, there were reports that the government attempted to pressure individual unions to leave the confederation with which they were affiliated and join a confederation that supported government policies. Approximately 50 percent of the workforce belonged to a union.

There were two union confederations--the Trade Union Confederation of Moldova (TUCM) and the Confederation of Free Trade Unions Solidaritate (Solidarity). The latter advocated government positions and was widely believed to enjoy government support. During the year, the government continued to pressure several local teachers' unions to quit TUCM and join Solidaritate. The government did not respond to calls by the TUCM leaders and the International Confederation of Free Trade Unions that it stop interfering in the internal affairs of the union movement.

b. The Right to Organize and Bargain Collectively

The law provides for collective bargaining, the right to organize, and the right to conduct activities without government interference; however, the government did not always respect these rights in practice (see section 6.a.). The law provides for the right to strike, except for workers in essential services, and workers exercised this right by conducting legal strikes.

The government, company management, and unions negotiated national minimum wages in tripartite talks. Arbitration committees typically settled workplace labor disputes. If an arbitration committee failed to settle a dispute, parties could take it to the court of appeals.

Public officials and workers in essential services such as emergency health care, water and energy supply, telecommunications, air traffic control, law enforcement, judges and military employees do not have the right to strike; the law provides for arbitration of disputes in these sectors with court mediation as a final option to ensure due process.

There are no special laws or exemptions from regular labor laws in export processing zones.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, including by children, but there were reports that such practices occurred (see section 5).

Child labor was a problem (see section 6.d.).

d. Prohibition of Child Labor Practices and Minimum Age for Employment

The law sets standards for child labor, including the minimum age for employment, hours of work, and working conditions, and prohibits the worst forms of child labor; however, the government did not effectively enforce these protections. The law provides for 10 to 15 years' imprisonment for persons involving children in the worst forms of child labor; under aggravated circumstances, sentences could be life imprisonment. Child labor was a problem. Due to the poor economic conditions, parents often sent children to work in the fields or to find other work, and those living in rural areas often assisted in the agricultural sector.

The minimum age for unrestricted employment was 18 years. Persons between the ages of 16 and 18 were permitted to work under special conditions, including shorter workdays, no night shifts, and longer vacations.

Trafficking in persons, including trafficking of children, remained a very serious problem (see section 5).

Efforts to enforce child labor laws did not deter violators. The Labor Inspection Office (LIO), which in April was moved from the Ministry of Labor and Social Protection to the Ministry of Economy and Trade, is responsible for investigating possible child labor violations. The LIO, which has not uncovered any child labor violations since its creation in 2002, found it difficult to distinguish between children involved in forced labor and those involved in the common practice of helping on family farms.

The ILO in cooperation with the government implemented aspects of its international program for the elimination of child labor by strengthening local antitrafficking committees, establishing community-based youth centers, training representatives of employers' organizations and trade unions, promoting employment for at-risk youth and parents, and improving care for child victims of trafficking.

e. Acceptable Conditions of Work

The legal minimum monthly wage was approximately \$16 (200 lei) for public sector employees and approximately \$44 (550 lei) for private sector employees, neither of which provided a decent standard of living for a worker and family. The LIO is responsible for enforcing the minimum wage regulation, and it opened some administrative cases against employers who violated it. Severe budgetary constraints often prevented government and private sector employers from meeting employee payrolls.

The law sets the maximum workweek at 40 hours with extra compensation for overtime, and the law provides for at least one day off per week.

The government is required to establish and monitor safety standards in the workplace. The LIO is responsible for enforcing health and safety standards; however, health and safety standards were not adequately enforced. Workers have the right to refuse to work if working conditions represent a serious health threat, but there were no reports that workers exercised this right in practice. Poor economic conditions led enterprises to economize on safety equipment and give inadequate attention to worker safety. According to labor inspection office preliminary data, there were 121 workplace accidents during the year, in which 41 persons died.

The Office of Website Management, Bureau of Public Affairs, manages this site as a portal for information from the U.S. State Department.

External links to other Internet sites should not be construed as an endorsement of the views or privacy policies contained therein.

Note: documents in Portable Document Format (PDF) require Adobe Acrobat Reader 5.0 or higher to view, [download Adobe Acrobat Reader \(http://get.adobe.com/reader/\)](http://get.adobe.com/reader/).